

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Thomas Juliano	Team: Squad #13	CCRB Case #: 201709000	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 10/27/2017 7:05 PM	Location of Incident: South-east corner of Shore Parkway & East 102nd Street	18 Mo. SOL 4/27/2019	Precinct: 69		
Date/Time CV Reported Mon, 10/30/2017 5:37 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 10/30/2017 5:37 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Cory Tizzio	05792	957220	069 PCT
2. POM Robert Gallagher	14960	957611	069 PCT
3. POM Steve Cruz	20218	950252	069 PCT
4. POM Andre Morris	15124	956955	069 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Robert Gallagher	Abuse: Police Officer Robert Gallagher stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Unsubstantiated
B . POM Andre Morris	Abuse: Police Officer Andre Morris stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	B . Unsubstantiated
C . POM Robert Gallagher	Abuse: Police Officer Robert Gallagher frisked § 87(2)(b)	C . Exonerated
D . POM Andre Morris	Abuse: Police Officer Andre Morris searched § 87(2)(b)	D . Exonerated
E . POM Robert Gallagher	Abuse: Police Officer Robert Gallagher searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	E . Exonerated
F . POM Cory Tizzio	Abuse: Police Officer Cory Tizzio seized § 87(2)(b)'s property.	F . Exonerated
G . POM Andre Morris	Abuse: Police Officer Andre Morris damaged § 87(2)(b)'s property.	G . Complainant Uncooperative
§ 87(4-b) § 87(2)(g)		

Case Summary

On October 30, 2017, this complaint was filed by § 87(2)(b) on behalf of himself, § 87(2)(b) and § 87(2)(b) with the CCRB via the online website.

On October 27, 2017, at approximately 7:00 p.m., PO Andre Morris and PO Robert Gallagher, of the 69th Precinct, stopped § 87(2)(b) and § 87(2)(b) near the intersection of Shore Parkway and East 102nd Street in Brooklyn under the suspicion of smoking marijuana in a parked car (**Allegations A and B: Abuse of Authority**, § 87(2)(g), § 87(2)(b)). § 87(2)(b) was the owner of the vehicle and not at the incident location. PO Tizzio and PO Cruz saw the stop and responded for support. PO Gallagher frisked § 87(2)(b) and PO Morris searched § 87(2)(b) (Allegation C and D: Abuse of Authority, § 87(2)(g)). PO Gallagher searched the car in which § 87(2)(b) and § 87(2)(b) were seated (Allegation E: Abuse of Authority, § 87(2)(g), § 87(2)(b) and § 87(2)(b) were arrested as a result of this incident and charged with § 87(2)(b). PO Tizzio was assigned the arrest and he seized the vehicle (Allegation F: Abuse of Authority: § 87(2)(g), § 87(2)(b) retrieved the vehicle from the stationhouse and upon receiving it he noticed that the front bumper was damaged (Allegation G: Abuse of Authority: § 87(2)(g), § 87(2)(g), § 87(4-b)). A statement from § 87(2)(b) and § 87(2)(b) could not be obtained as they were ultimately uncooperative with the investigation. No video footage existed for this case.

Findings and Recommendations

Allegation A – Abuse of Authority: Police Officer Robert Gallagher stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation B – Abuse of Authority: Police Officer Andre Morris stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

It is undisputed that § 87(2)(b) and § 87(2)(b) were sitting in § 87(2)(b)'s vehicle and were parked in a legal parking spot. It is also undisputed that the vehicle contained marijuana.

§ 87(2)(b) stated that he was at § 87(2)(b) house with § 87(2)(b) kids while § 87(2)(b) was at work. Once § 87(2)(b) came home, § 87(2)(b) and § 87(2)(b) went down to § 87(2)(b)'s car so that § 87(2)(b) could drive § 87(2)(b) home. § 87(2)(b) got into the car and § 87(2)(b) put a laundry bag into the trunk before getting into the car. Approximately thirty seconds after § 87(2)(b) got into the car, PO Morris and PO Gallagher approached the vehicle and told them that it smelled like marijuana. Neither § 87(2)(b) nor § 87(2)(b) were smoking marijuana in the vehicle. § 87(2)(b) did have a small quantity of vegetative marijuana in his pocket. § 87(2)(b) had vegetative marijuana in the vehicle that § 87(2)(b) did not know about until it was found by the officers.

PO Morris, PO Gallagher, and PO Tizzio stated that they were patrolling with their windows down in their patrol cars when they smelled an odor of burning marijuana. Their attention was brought to § 87(2)(b) and § 87(2)(b) because there were not many people on the street and they saw what they believed to be a lit marijuana cigarette inside of the car, so they stopped § 87(2)(b) and § 87(2)(b) to further investigate. Burning marijuana was not recovered.

PO Cruz did not remember this incident.

§ 87(2)(g)

Allegation C – Abuse of Authority: Police Officer Robert Gallagher frisked

§ 87(2)(b)

Allegation D – Abuse of Authority: Police Officer Andre Morris searched

§ 87(2)(b)

Allegation E – Abuse of Authority: Police Officer Robert Gallagher searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

It is undisputed that PO Gallagher frisked § 87(2)(b) and that PO Morris searched § 87(2)(b). Also, it is undisputed that § 87(2)(b) had vegetative marijuana in his pocket and that the interior of § 87(2)(b)'s vehicle contained vegetative marijuana belonging to § 87(2)(b). It is undisputed that while PO Morris was frisking § 87(2)(b) that he asked § 87(2)(b) what an item was in his pocket, to which § 87(2)(b) replied that it was marijuana. It is undisputed that PO Gallagher searched the vehicle and that § 87(2)(b) vegetative marijuana was recovered.

PO Morris and PO Gallagher stated that they patted § 87(2)(b) and § 87(2)(b) waistband and outer pockets as procedure to ensure their safety. PO Morris and PO Gallagher denied that there were any specific bulges, factors, or indications that led them to believe that § 87(2)(b) or § 87(2)(b) were armed with weapons. PO Gallagher found a gravity knife on § 87(2)(b) clipped into his right-hand pants pocket after frisking him. Although the butt of the knife was visible, PO Gallagher did not see the knife before frisking § 87(2)(b) as § 87(2)(b) left side was facing PO Gallagher when § 87(2)(b) stepped out of the driver's seat. PO Morris stated that he did not enter § 87(2)(b) pockets until § 87(2)(b) stated that there was marijuana in his pocket.

The smell of marijuana smoke is sufficient to provide officers with probable cause to search a vehicle and its occupants. People v. Chestnut, 43 A.D.2d 260 (1974) (**Board Review 01**).

§ 87(2)(g)

Allegation F – Abuse of Authority: Police Officer Cory Tizzio seized § 87(2)(b) s property.

It is undisputed that the car containing § 87(2)(b) and § 87(2)(b) was owned by § 87(2)(b) who was not at the arrest location. It is undisputed that the vehicle was released to § 87(2)(b) at the stationhouse.

PO Tizzio stated § 87(2)(b) told him at the arrest location that he did not own the vehicle. Although the vehicle was in a legal parking spot, it was taken back to the stationhouse so that the true owner could be confirmed. PO Tizzio confirmed the true owner via either the car's paperwork or by searching the VIN number. After confirming that § 87(2)(b) owned the car, PO Tizzio had § 87(2)(b) call § 87(2)(b) who came and retrieved the vehicle.

A vehicle can be seized following an arrest if the true owner cannot be determined. Patrol Guide Procedure, 218-19 (**Board Review 02**).

§ 87(2)(g)

Allegation G – Abuse of Authority: Police Officer Andre Morris damaged § 87(2)(b) s property.

§ 87(2)(b) was ultimately uncooperative with the investigation. He did not provide a phone statement; § 87(2)(g)

Neither § 87(2)(b) nor § 87(2)(b) saw the vehicle be damaged. PO Morris drove the vehicle back to the stationhouse and denied damaging the vehicle. PO Gallagher and PO Tizzio did not see the vehicle be damaged. § 87(2)(g)

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Mediation, Civil, and Criminal Histories

- § 87(2)(b) rejected mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
- A Notice of Claim request was submitted with the New York City Comptroller's Office on April 30, 2018. That request is still pending, as of the writing of this report (**Board Review 04**).

Civilian and Subject Officer CCRB Histories

- This is the first complaint to which § 87(2)(b) and § 87(2)(b) have been a party (**Board Review 05**).
- PO Tizzio has been a member-of-service for three years, and has been a subject in four CCRB complaints and six allegations, none of which were substantiated. § 87(2)(g)
[REDACTED]
- PO Gallagher has been a member-of-service for three years, and has been a subject in two CCRB complaints and four allegations, none of which were substantiated. § 87(2)(g)
[REDACTED] (g)
[REDACTED]
- PO Morris has been a member-of-service for three years, and has been a subject in five CCRB complaints and fourteen allegations, none of which were substantiated. § 87(2)(g)
[REDACTED]
[REDACTED].

Squad No.: 13

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date